

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE

FOR

HOUSE BILL NO. 3852

By: Roberts

COMMITTEE SUBSTITUTE

An Act relating to elections; amending 26 O.S. 2021, Section 2-124, which relates to appointment of inspector, judge, and clerk of election precincts; directing the secretary of the county election board to make appointments every two years; requiring submission of nominees list with two times the number of county precincts; modifying procedure in case of insufficient nominees; limiting appointment of nominees outside list provided by county central committee; directing the Secretary of the State Election Board to provide certain written notification; amending 26 O.S. 2021, Section 2-131, which relates to eligibility for membership on county election board to serve as precinct official; requiring precinct officials to swear and affirm oath to follow the laws and procedures governing the conduct of elections; directing the State Election Board to prescribe oath; establishing that lawfully removed precinct officials may not serve for period of ten years; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 26 O.S. 2021, Section 2-124, is amended to read as follows:

1 Section 2-124. A. The secretary of the county election board
2 shall appoint the inspector, judge and clerk of each precinct, to
3 serve terms of ~~four (4)~~ two (2) years each. The secretary's
4 appointments shall be made from the ranks of registered voters
5 within the county pursuant to the requirements of Section 2-123 of
6 this title.

7 B. 1. No later than June 15 of the year following a General
8 Election for Governor or President, the county central committees of
9 the two political parties with the highest number of registered
10 voters in the state, based on the latest January 15 registration
11 report, shall submit a list of nominees equal to ~~three~~ two times the
12 number of precincts in the county to the secretary of the county
13 election board.

14 2. a. The secretary of the county election board shall
15 utilize the list of nominees submitted by each party
16 to appoint one precinct official for each precinct
17 from each party no later than July 1 of the year
18 following a General Election for a Governor or
19 President. If no list is submitted by a county
20 central committee by the specified date, or if the
21 nominees are unable or unwilling to serve, or if the
22 nominees do not meet the eligibility requirements
23 described in Section 2-131 of this title, then the
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1 secretary of the county election board shall appoint
2 from the ranks of said party within the county.

3 b. Provided, if the county central committee for a
4 political party submits a list by the specified date,
5 but fails to include the number of nominees required
6 by paragraph 1 of this subsection, then the secretary
7 of the county election board shall still utilize the
8 list of nominees for the appointment of precinct
9 officials if the nominees meet the eligibility
10 requirements described in Section 2-131 of this title.

11 3. No later than thirty (30) business days following the
12 deadline for a county central committee to submit the list of
13 nominees described in paragraph 1 of this subsection, the Secretary
14 of the State Election Board shall provide a written notification to
15 the state central committee of each political party about which of
16 that party's county central committees failed to submit the number
17 of nominees required by law, and cause the letter to be published on
18 the State Election Board website.

19 C. Terms shall begin July 1 of the year following a General
20 Election for Governor or President.

21 D. In the event of a vacancy, the secretary of the county
22 election board shall fill the unexpired term from within the ranks
23 of registered voters within the county in the manner described in
24 Section 2-123 of this title.

1 E. The secretary of the county election board shall maintain a
2 current list of all precinct officials, by their registered names
3 and which shall be available for precinct inspection by the public,
4 or provided by electronic means.

5 SECTION 2. AMENDATORY 26 O.S. 2021, Section 2-131, is
6 amended to read as follows:

7 Section 2-131. A. 1. To be eligible for membership on a
8 county election board or to serve as a precinct official, one must
9 be a registered voter of the county in which he or she will serve
10 and demonstrate competence to perform his or her duties.

11 2. No person shall be eligible for membership on a county
12 election board or to serve as a precinct official unless he or she
13 has sworn or affirmed an oath that the person will follow the laws
14 and procedures governing the conduct of elections. Said oath shall
15 be prescribed by the Secretary of the State Election Board.

16 3. No member or alternate member of a county election board, or
17 any precinct official, who has been removed from that office in the
18 manner provided by law, shall be eligible for membership on a county
19 election board, or to serve as a precinct official, for a period of
20 three (3) years from the date of the removal.

21 4. Persons thus qualified and appointed shall be trained in
22 their duties in a manner prescribed by the Secretary of the State
23 Election Board.
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1 B. Notwithstanding the provisions of Section 481 of Title 21 of
2 the Oklahoma Statutes or any other provision of law, a secretary of
3 a county election board may temporarily appoint as a precinct
4 official, counter or absentee voting board member, an otherwise
5 qualified person who is related to the secretary within the second
6 or third degree by consanguinity or affinity. Provided, the
7 secretary of the county election board must receive written
8 permission from the Secretary of the State Election Board in order
9 to make such an appointment.

10 SECTION 3. This act shall become effective November 1, 2026.

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